

1 **SENATE FLOOR VERSION**

2 February 26, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 215

By: Seifried of the Senate

and

Moore of the House

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7
8
9 [mathematics instruction - legislative findings -
10 purpose - education - screening instrument -
11 exemptions - contents of program - math intervention
12 plan - notification - allocation - professional
13 development - stipend - summer academy programs -
14 requirements - rules - expenditures - fund -
15 screening policy - report - guidance - codification -
16 effective date -

emergency]

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1210.900 of Title 70, unless
20 there is created a duplication in numbering, reads as follows:

21 A. Sections 1 through 7 of this act shall be known and may be
22 cited as the "Oklahoma Math Achievement and Proficiency Act".

23 B. The Legislature finds that it is essential for children
24 enrolled in the public schools in this state to develop strong
mathematical proficiency early and consistently. The Legislature

1 further finds that clear and visible goals, assessments to determine
2 math proficiency at each school, the use of scientifically based and
3 researched methodologies in math instruction, along with regular and
4 periodic measurements of school math improvement, and accountability
5 at each level of the educational system will result in a significant
6 increase in the number of children performing at or above grade
7 level in mathematics.

8 C. The purpose of the Oklahoma Math Achievement and Proficiency
9 Act is to ensure that student achievement in math is encouraged and
10 progression from one grade to another is determined, in part, upon
11 proficiency in mathematics, that school district board of education
12 policies facilitate promotion of advanced math instruction and
13 intervention services to address student math needs, and that each
14 student and his or her parent or legal guardian be informed of the
15 student's progress in mathematics.

16 D. Each public school district in this state shall ensure that
17 all students receive a well-rounded education focused on building
18 deep foundations in mathematics, reading, and writing. The State
19 Board of Education shall encourage school districts to integrate the
20 teaching of the other curricular areas in subject matter standards
21 adopted by the Board with the instruction of mathematics, reading,
22 and writing.

23 E. All teachers of mathematics in the public schools in this
24 state shall incorporate into instruction the foundational elements

1 of math instruction, including the development of grade-level
2 appropriate mathematical proficiency which is a combination of real-
3 world problem-solving skills, procedural fluency, conceptual
4 understanding, and productive dispositions.

5 SECTION 2. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1210.901 of Title 70, unless
7 there is created a duplication in numbering, reads as follows:

8 A. To identify students who have a math deficiency including
9 students with characteristics of dyscalculia, each student enrolled
10 in second, third, fourth, and fifth grade in a public school in this
11 state shall be screened at the beginning, middle, and end of each
12 school year for math proficiency including, but not limited to,
13 real-world problem-solving skills, procedural fluency, conceptual
14 understanding, and productive dispositions. A screening instrument
15 approved by the State Board of Education shall be utilized for the
16 purposes of this section. In determining which screening instrument
17 to approve, the State Board of Education shall take into
18 consideration, at a minimum, the following factors:

19 1. The time required to conduct the screening instrument with
20 the intention of minimizing the impact on instructional time;

21 2. The timeliness in reporting screening instrument results to
22 teachers, administrators, and parents or legal guardians of
23 students; and
24

1 3. The integration of the screening instrument into the math
2 curriculum.

3 B. Beginning in the 2026-2027 school year, the State Board of
4 Education shall approve no fewer than three screening instruments
5 for use at the beginning, middle, and end of the school year for
6 monitoring progress and measurement of math proficiency as required
7 in subsection A of this section. The screening instrument shall:

8 1. Assess mathematical proficiency, which is a combination of
9 real-world problem-solving skills, procedural fluency, conceptual
10 understanding, and productive dispositions for the grade level as
11 defined by the state's subject matter standards;

12 2. Document the validity and reliability of each assessment;

13 3. Be used for identifying students who are at risk for math
14 deficiencies and for progress monitoring throughout the school year;

15 4. Be used to assess students with disabilities and English
16 language learners; and

17 5. Be accompanied by a data management system that provides
18 profiles of students, class, grade level, and school building. The
19 profiles shall identify each student's instructional point of need,
20 competency for advanced math coursework, and math proficiency level.
21 The State Board of Education shall also determine other comparable
22 math assessments for diagnostic purposes to be used for students at
23 risk of math failure.

1 C. 1. Exemptions to the screening requirements required by
2 this section may be provided to students who have documented
3 evidence that they meet at least one of the following criteria as
4 related to the provision of classroom instruction:

5 a. the student participates in the Oklahoma Alternate
6 Assessment Program (OAAP) and is taught using
7 alternate methods,

8 b. the student's primary expressive or receptive
9 communication is sign language,

10 c. the student's primary form of written or read text is
11 Braille, or

12 d. the student's primary expressive or receptive language
13 is not English, the student is identified as an
14 English learner using a state-approved identification
15 assessment, and the student has had less than one (1)
16 school year of instruction in an English-learner
17 program.

18 2. A public school that grants an exemption pursuant to
19 paragraph 1 of this subsection shall provide ongoing evidence of
20 student progression toward English language acquisition with the
21 same frequency as administration of screening assessments. Evidence
22 may include, but not be limited to, student progression toward OAAP
23 math essential elements, proficiency in sign language and
24

1 mathematical reasoning, and proficiency in Braille and mathematical
2 concepts.

3 D. 1. Students who are administered a screening instrument
4 pursuant to subsection A of this section and are found to be
5 exceeding grade-level targets shall be provided advanced learning
6 opportunities in mathematics approved for that student's grade
7 level. No student who qualifies pursuant to this subsection shall
8 be removed from the advanced learning opportunity provided to the
9 student unless a parent or legal guardian of the student provides
10 written consent for the student to be excluded or removed after
11 being adequately informed that the student's placement was
12 determined by the student's achievement on the screening instrument.

13 2. Students who are administered a screening instrument
14 pursuant to subsection A of this section and are found not to be
15 meeting grade-level targets shall be provided a program of math
16 instruction designed to enable students to acquire the appropriate
17 grade-level math proficiency. The program of math instruction shall
18 be based on scientific math research and align with the subject
19 matter standards adopted by the State Board of Education. A program
20 of math instruction shall include:

21 a. sufficient additional in-school instructional time for
22 the acquisition of mathematical proficiency, which is
23 a combination of real-world problem-solving skills,

24

1 procedural fluency, conceptual understanding, and
2 productive dispositions,

3 b. if necessary and if funding is available, tutorial
4 instruction after regular school hours, on Saturdays,
5 and during summer; however, such instruction may not
6 be counted toward the one-hundred-eighty-day or one-
7 thousand-eighty-hour school year required in Section
8 1-109 of Title 70 of the Oklahoma Statutes,

9 c. assessments identified for diagnostic purposes and
10 periodic monitoring to measure the acquisition of math
11 proficiency including, but not limited to, real-world
12 problem-solving skills, procedural fluency, conceptual
13 understanding, and productive dispositions, as
14 identified in the student's program of math
15 instruction,

16 d. high-quality instructional materials grounded in
17 scientifically based math research, and

18 e. a means of providing every family of a student in
19 second, third, fourth, and fifth grade access to free
20 online evidence-based math instruction resources to
21 support the student's math development at home.

22 3. A student enrolled in second, third, fourth, and fifth grade
23 who exhibits a deficiency in math at any time based on the screening
24 instrument administered pursuant to subsection A of this section

1 shall receive an individual math intervention plan no later than
2 thirty (30) days after the identification of the deficiency in math.
3 The math intervention plan shall be provided in addition to core
4 math instruction that is provided to all students. The math
5 intervention plan shall:

- 6 a. describe the research-based math intervention services
7 the student will receive to remedy the deficiency in
8 math,
- 9 b. provide explicit and systematic instruction in real-
10 world problem-solving skills, procedural fluency,
11 conceptual understanding, and productive dispositions,
12 as applicable,
- 13 c. monitor the math progress of each student's math
14 proficiency throughout the school year and adjust
15 instruction according to the student's needs, and
- 16 d. continue until the student is determined to be meeting
17 grade-level targets in math based on screening
18 instruments administered pursuant to subsection A of
19 this section or assessments identified for diagnostic
20 purposes and periodic monitoring pursuant to
21 subparagraph c of paragraph 2 of this subsection.

22 4. The math intervention plan for each student identified with
23 a deficiency in math shall be developed by a student math
24

1 proficiency team and shall include supplemental instructional
2 services and supports. Each team shall be comprised of:

3 a. the parent or legal guardian of the student,
4 b. the teacher assigned to the student who had
5 responsibility for math instruction in that academic
6 year,

7 c. a teacher who is responsible for math instruction and
8 is assigned to teach in the next grade level of the
9 student, and

10 d. a teacher who specializes in math interventions, if
11 one is available.

12 5. A school district shall notify the parent or legal guardian
13 of any student in second, third, fourth, and fifth grade who
14 exhibits a deficiency in math at any time based on the screening
15 instrument administered pursuant to subsection A of this section.
16 The notification shall occur no later than thirty (30) days after
17 the identification of the deficiency in math.

18 SECTION 3. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1210.902 of Title 70, unless
20 there is created a duplication in numbering, reads as follows:

21 A. Contingent on the provision of appropriated funds designated
22 for the Oklahoma Math Achievement and Proficiency Act, public school
23 districts may be allocated monies for each enrolled second-, third-,
24 fourth-, and fifth-grade student of the current school year who is

1 found to be in need of remediation or intensive intervention
2 services in mathematics. The allocation shall be distributed to
3 each public school district upon approval of the strong math plan
4 for the school district by the State Board of Education and the
5 submittal of a child-count report to the State Department of
6 Education that details the number of students identified as needing
7 remediation or intensive intervention services in mathematics. To
8 determine a per-student allocation amount, the total amount of funds
9 available for allocation each year shall be divided by the total
10 number of students in the state identified as in need of remediation
11 or intensive intervention services in mathematics as provided for in
12 Section 2 of this act. Each public school district shall be
13 allocated an amount equal to the per-student allocation amount
14 multiplied by the number of identified students enrolled in the
15 school district.

16 B. Public school districts receiving more than Two Thousand
17 Five Hundred Dollars (\$2,500.00) pursuant to subsection A of this
18 section shall spend no less than ten percent (10%) to provide
19 professional development for teachers. The professional development
20 shall include training in scientifically based math research
21 including how students learn mathematical concepts; training in
22 providing explicit and systematic instruction in real-world problem-
23 solving skills, procedural fluency, conceptual understanding, and
24 productive dispositions; implementing math strategies that research

1 has shown to be successful in improving math proficiency among
2 students with math difficulties; courses leading to a micro-
3 credential in mathematics; and instructional materials required for
4 implementation.

5 C. The State Department of Education shall approve and publish
6 a list of professional development programs that are evidence-based
7 and directly address the cognitive science of how students learn
8 mathematics for which districts are permitted to use the funds
9 received pursuant to this section.

10 D. If a teacher attends and completes a professional
11 development institute in elementary math approved by the Commission
12 for Educational Quality and Accountability during the summer or when
13 school is not in session, the teacher may receive a stipend equal to
14 the amount of the cost for a substitute teacher, based on the amount
15 of funds allocated.

16 SECTION 4. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 1210.903 of Title 70, unless
18 there is created a duplication in numbering, reads as follows:

19 A. If a teacher determines that a student in second, third,
20 fourth, and fifth grade is performing above grade level in
21 mathematics by the start of the second quarter of the school year,
22 the parent or legal guardian of the student shall be notified of:

23 1. The math proficiency level of the student;
24

1 2. The program of advanced math instruction available for the
2 student; and

3 3. The potential for the student to participate in a summer
4 academy or other program designed to assist the student in excelling
5 in mathematics.

6 B. If a teacher determines that a student in second, third,
7 fourth, and fifth grade is not performing at grade level in
8 mathematics by the start of the second quarter of the school year,
9 the parent or legal guardian of the student shall be notified of:

10 1. The math proficiency level of the student;

11 2. The program of math instruction for the student as required
12 pursuant to this act; and

13 3. The potential need for the student to participate in a
14 summer academy or other program designed to assist the student in
15 attaining grade-level math proficiency.

16 C. A teacher who determines a student in second, third, fourth,
17 and fifth grade is exceeding or not meeting grade-level targets for
18 mathematics may, after consultation with the parent or legal
19 guardian of the student, recommend that the student participate in
20 and complete a summer academy or other program.

21 D. Summer academy programs shall be designed to ensure that
22 participating students successfully complete an advanced
23 mathematical program or grade-level competencies in mathematics to
24 enhance next-grade readiness. A summer academy math program shall

1 be a program that incorporates the content of a scientifically
2 research-based professional development program administered by the
3 Commission for Educational Quality and Accountability or a
4 scientifically research-based math program administered by the State
5 Board of Education which is taught by teachers who have successfully
6 completed professional development in the math program. All summer
7 academy programs shall consist of a minimum of three (3) consecutive
8 days. The State Department of Education shall provide a list of
9 qualified entities for providing the summer academy programs to all
10 schools by April 1, 2026.

11 E. School districts may approve an option for students who are
12 unable to attend a summer academy. The optional program may
13 include, but not be limited to, an approved private provider of
14 instruction, approved computer- or Internet-based instruction, or an
15 approved program of math instruction monitored by the parent or
16 legal guardian of the student. Public school districts shall not be
17 required to pay for the optional program but shall clearly
18 communicate to the parent or legal guardian the expectations of the
19 program and any costs that may be involved.

20 F. Subject to the availability of funds, beginning one (1) year
21 after implementation of this section, the requirements of subsection
22 C of this section may be expanded to apply to students in first
23 grade. Each year thereafter, the requirements may be expanded by
24 one grade level until the requirements apply to kindergarten

1 students through fifth-grade students. Summer academy programs
2 shall be designed for each grade level. Nothing in this section
3 shall prevent the State Board of Education or a school district
4 board of education from utilizing private, local, or federal funds
5 to implement the provisions of this section.

6 G. The State Board of Education shall promulgate rules to
7 implement the provisions of this section, which shall include
8 requirements for instructional time for summer academy programs,
9 teacher qualifications, and evaluation of student achievement as a
10 result of summer academy programs or other optional programs.

11 SECTION 5. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 1210.904 of Title 70, unless
13 there is created a duplication in numbering, reads as follows:

14 A. The Commission for Educational Quality and Accountability
15 shall ensure that the mathematics competencies for elementary
16 teachers are included in the competencies for special education
17 teachers.

18 B. The Commission for Educational Quality and Accountability,
19 in collaboration with the Oklahoma State Regents for Higher
20 Education, shall ensure that all teachers of early childhood
21 education, elementary education, and special education are provided
22 quality training in intervention, instruction, and remediation
23 strategies in mathematics to provide explicit and systematic
24 instruction in real-world problem-solving skills, procedural

1 fluency, conceptual understanding, and productive dispositions. The
2 Commission, in collaboration with the State Regents, shall also
3 implement mathematical strategies that research has shown to be
4 successful in improving mathematics understanding among students
5 with math difficulties. In addition, quality education for
6 prospective teachers shall be provided in research-based
7 instructional strategies for teaching, assessing, and intervening in
8 mathematics development for all students including advanced
9 learners, typically developing learners, and struggling learners who
10 face a range of challenges including, but not limited to, English
11 learners and students with disabilities or learning challenges, such
12 as dyscalculia. Quality training shall include guidance from
13 professional resources such as the National Council of Teachers of
14 Mathematics (NCTM) guidelines, Response to Intervention guidelines,
15 and professional organizations such as the Council for Exceptional
16 Children, National Association for the Education of Young Children,
17 and other relevant professional mathematics education bodies.

18 C. All institutions of higher education within The Oklahoma
19 State System of Higher Education that offer elementary, early
20 childhood education, or special education programs approved by the
21 Commission for Educational Quality and Accountability shall
22 incorporate into those programs the requirement that teacher
23 candidates study key elements of mathematics instruction including
24 real-world problem-solving skills, procedural fluency, conceptual

1 understanding, and productive dispositions. Teacher candidates
2 shall study strategies including, but not limited to, instruction
3 that is explicitly taught, sequenced, multimodal (visual, auditory,
4 kinesthetic, etc.), interdisciplinary, and reflective to adapt for
5 individual learners.

6 D. Candidates applying for an alternative placement teaching
7 certificate or an emergency teaching certificate in elementary
8 education shall complete instruction in a scientifically research-
9 based math program as determined by the Commission for Educational
10 Quality and Accountability and the State Board of Education.

11 SECTION 6. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 1210.906 of Title 70, unless
13 there is created a duplication in numbering, reads as follows:

14 A. There is hereby created in the State Treasury a revolving
15 fund for the Oklahoma State Regents for Higher Education to be
16 designated the "Statewide Mathematics Revolving Fund". The fund
17 shall be a continuing fund, not subject to fiscal year limitations,
18 and shall consist of all monies received by the State Regents from
19 state appropriations provided for the purpose of implementing the
20 provisions of subsection B of this section. All monies accruing to
21 the credit of the fund are hereby appropriated and may be budgeted
22 and expended by the State Regents for the purpose provided for in
23 this subsection. Expenditures from the fund shall be made upon
24 warrants issued by the State Treasurer against claims filed as

1 prescribed by law with the Director of the Office of Management and
2 Enterprise Services for approval and payment.

3 B. Subject to the availability of funding, the Oklahoma State
4 Regents for Higher Education shall utilize the Statewide Mathematics
5 Revolving Fund created in subsection A of this section to:

6 1. Implement training for a scientifically research-based math
7 program in teacher education programs accredited by the Commission
8 for Educational Quality and Accountability. For the purposes of
9 this section, training in a scientifically research-based math
10 program includes providing explicit and systematic instruction in
11 real-world problem-solving skills, procedural fluency, conceptual
12 understanding, and productive dispositions, and implementing
13 instructional strategies that research has shown to be successful in
14 improving mathematics achievement among students with learning
15 difficulties in math. Beginning with students entering a teacher
16 education program accredited by the Commission for Educational
17 Quality and Accountability in the 2026-2027 academic year,
18 completion of training required by this paragraph shall lead to a
19 micro-credential in mathematics, which shall be reflected on
20 teaching certificates awarded to such individuals; and

21 2. Support teacher education programs accredited by the
22 Commission for Educational Quality and Accountability in developing
23 and implementing a micro-credential in mathematics for certified
24 teachers employed by school districts and charter schools in this

1 state. A micro-credential awarded pursuant to this paragraph shall
2 be reflected on a teacher's certificate to teach.

3 SECTION 7. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1210.907 of Title 70, unless
5 there is created a duplication in numbering, reads as follows:

6 A. Beginning with the 2025-2026 school year and for each school
7 year thereafter, any student enrolled in second, third, fourth, and
8 fifth grade in a public school in this state who is assessed through
9 the Oklahoma Math Achievement and Proficiency Act pursuant to
10 Section 2 of this act, and who is not meeting grade-level targets in
11 mathematics after the beginning-of-the-year screening instrument,
12 shall be screened for dyscalculia. Screening also may be requested
13 for a student by his or her parent or legal guardian, teacher, or
14 counselor. A student who tests positive for dyscalculia shall not
15 be required to be rescreened unless requested by his or her parent
16 or legal guardian.

17 B. No later than December 31, 2025, the State Board of
18 Education shall develop policies for dyscalculia screening required
19 pursuant to this section and shall include, but not be limited to:

20 1. The definition and characteristics of dyscalculia and
21 related disorders;

22 2. The process for referring students in grades two through
23 five for screening;

1 3. A process for providing notification to parents or legal
2 guardians of the use of a qualified dyscalculia-screening tool and
3 notification of the results of the screening;

4 4. A process for providing the parents or legal guardians of
5 students screened for dyscalculia with information and resource
6 material regarding dyscalculia;

7 5. A process for monitoring the student's progress after the
8 positive identification of characteristics of dyscalculia or other
9 math-related disorders; and

10 6. Requirements and qualifications for screeners that
11 demonstrate an understanding of and training to administer the
12 screening instrument.

13 C. The Board shall adopt a list of approved qualified
14 dyscalculia screening tools that address developmentally appropriate
15 components.

16 D. Screening shall be conducted in accordance with the policies
17 developed by the State Board of Education pursuant to subsection B
18 of this section and the guidance within the dyslexia and dysgraphia
19 handbook developed pursuant to Section 1210.517 of Title 70 of the
20 Oklahoma Statutes including policies and information developed
21 relating to universal screening of students for characteristics of
22 dyscalculia.

1 E. Beginning June 30, 2026, and June 30 each year thereafter,
2 public school districts shall provide the following data to the
3 State Department of Education:

4 1. The number of students by grade level in grades two through
5 five who were screened for dyscalculia in a school year;

6 2. The number of students by grade level in grades two through
7 five who were newly identified as having characteristics of
8 dyscalculia in a school year;

9 3. The process or tools used to evaluate student progress;

10 4. The number of trained school system personnel or licensed
11 professionals used to administer the qualified dyscalculia screening
12 tool;

13 5. The number of students in grades two through five who were
14 participating in interventions within the school setting and the
15 number of students participating in interventions outside the school
16 setting; and

17 6. The programs used by districts for intervention within the
18 school setting.

19 F. The State Department of Education shall designate personnel
20 to provide technical assistance to implement the provisions of this
21 act.

22 G. By December 31, 2026, and by December 31 each year
23 thereafter, the State Department of Education shall electronically
24 provide a report containing all of the data provided pursuant to

1 subsection E of this section to the Governor and Legislature and
2 make the report available on the Department's website.

3 H. As funds are available, beginning with the 2025-2026 school
4 year, the Department shall provide training on the best practices
5 for screening for dyscalculia.

6 I. The State Board of Education may promulgate rules to
7 implement the provisions of this section.

8 SECTION 8. AMENDATORY 70 O.S. 2021, Section 6-200, as
9 amended by Section 2, Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2024,
10 Section 6-200), is amended to read as follows:

11 Section 6-200. A. Subject to the availability of funds, the
12 State Board of Education shall have authority to develop and
13 administer training for residency committees and training for
14 professional development through professional development
15 institutes. Included in the professional development institute
16 training shall be technology training. "Professional development
17 institutes" shall be defined as continuing education experiences
18 which consist of a minimum of thirty (30) clock hours. The
19 institutes shall be competency-based, emphasize effective learning
20 practices, require collaboration among participants, and require
21 each participant to prepare a work product which can be utilized in
22 the classroom by the participant. Any state professional
23 development institutes administered by the Board shall be chosen
24 through a competitive bid process and, if funds are available,

1 subject to peer review. The Board, prior to offering any
2 professional development institute, shall promulgate rules related
3 to administering state professional development institutes.

4 B. The State Board of Education shall develop, offer, and
5 administer professional development institutes to train elementary
6 school teachers in reading education and, if funds are available,
7 which may include, but not be limited to, grant, foundation, or
8 other funds, to train middle school teachers in reading education.
9 Funds appropriated for this purpose shall be used for the cost of
10 developing, administering, and contracting for the professional
11 development institutes. When possible, certified reading
12 specialists shall be included as consultants. All costs of the
13 institutes shall be included in the contract price, and no tuition
14 or registration fee shall be collected from teachers attending the
15 institutes. The institutes shall be offered by or through the
16 Commission for Educational Quality and Accountability. Working in
17 conjunction with the State Department of Education, the Commission
18 shall develop a state plan for administration of such institutes and
19 shall report electronically on or before November 1 of each year to
20 the Governor and the Legislature on the format of and participation
21 in the institutes. The State Department of Education shall
22 cooperate with and provide any information requested, including data
23 available through the state student record system, to the State

1 Board of Education as is necessary to carry out the provisions of
2 this section.

3 C. Subject to the availability of funds, the State Board of
4 Education shall:

5 1. Contract for an independent evaluation of the reading
6 professional development institutes. The evaluation shall determine
7 adherence to program requirements as provided in this section and
8 the program's effectiveness in increasing teacher knowledge and
9 student achievement; and

10 2. Provide continued support of the reading professional
11 development institutes through ongoing teacher development at
12 individual school sites. Funds may be used for the cost of mentor
13 training, payment for substitute teachers, on-site facilitation, and
14 any other costs necessary to ensure improved reading by students.

15 D. 1. For the purpose of implementing comprehensive reading
16 reform and systemic change, the State Board of Education shall award
17 one-year grants renewable for up to two (2) additional years to
18 public schools that serve students in kindergarten through third
19 grade. The grants shall provide for:

20 a. a five-day initial professional development institute
21 in elementary school reading for teachers of
22 kindergarten through third grade, instructional
23 leaders, and principals,
24

- b. a three-day follow-up professional development institute in elementary school reading for teachers of kindergarten through third grade and instructional leaders, and
- c. continued support through ongoing teacher development at school sites, including four (4) days of professional development for principals and literacy resource specialists and six (6) days of on-site visits by a program consultant.

2. In order to qualify for a grant pursuant to this subsection, the following requirements shall be met:

- a. at least eighty percent (80%) of the teachers of kindergarten through third grade at the school shall have demonstrated support for the training program provided pursuant to this subsection,
- b. the principal shall ensure that all members of the leadership team and all teachers of kindergarten through third grade will participate in all phases of the training program,
- c. the school district shall ensure that any new teacher of kindergarten through third grade or principal at the school will participate in all phases of the training program, and

1 d. the school district shall employ a literacy resource
2 specialist for at least two (2) years after completion
3 of the training provided in this subsection. One or
4 more districts may share a literacy resource
5 specialist upon approval of the Board.

6 3. Any school which has been determined by the State Board of
7 Education to be a school in need of improvement shall be given
8 priority for receipt of a grant. Grants to ~~local~~ school districts
9 may be awarded based on the amount of funds allocated to the State
10 Board of Education for the purposes of this section. Funds may be
11 used for payment for substitute teachers, program consultants, on-
12 site facilitation, and literacy resource specialists.

13 4. For program evaluation purposes, each school awarded a grant
14 pursuant to this subsection shall provide to the Commission for
15 Educational Quality and Accountability student-level data and
16 results of the reading assessments administered pursuant to the
17 Oklahoma School Testing Program Act for the year prior to the grant
18 award, for each year a grant is received by the school, and for
19 three (3) years after completion of the program. If funds are not
20 sufficient to award grants to all eligible applicants, schools may
21 be placed on a waiting list for priority consideration for the
22 following year's round of grant awards which shall be superior to
23 the priority given to schools as provided in paragraph 3 of this
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subsection, if the school provides student data for the current year to the Board as provided in this paragraph.

5. The professional development institutes in elementary reading provided pursuant to this section shall incorporate the requirements of the Strong Readers Act.

E. As additional funds become available for such purpose, the Board shall develop and offer professional development institutes in:

1. Mathematics for teachers in grades kindergarten through nine which incorporate the requirements of Sections 1 through 7 of this act;

2. The use of technology in the classroom;

3. Training of residency committee members in teacher mentoring; and

4. Hands-on inquiry-based science for elementary teachers.

SECTION 9. AMENDATORY 70 O.S. 2021, Section 1210.508, is amended to read as follows:

Section 1210.508. A. 1. By no later than December 31, 2016, the State Board of Education shall adopt a statewide system of student assessments in compliance with the Elementary and Secondary Education Act of 1965 (ESEA), as reauthorized and amended by P.L. No. 114-95, also known as the Every Student Succeeds Act (ESSA).

2. The statewide student assessment system adopted by the Board pursuant to this subsection shall be aligned with the Oklahoma

1 Academic Standards as adopted by the Board and which prepare
2 students for college and careers.

3 B. 1. The Board shall issue a request for proposals for the
4 selection of assessments to be administered to students in grades
5 three through twelve as a part of the statewide student assessment
6 system adopted by the Board pursuant to this section.

7 2. The Board shall adopt assessments from the selected
8 proposals that were submitted pursuant to paragraph 1 of this
9 subsection. The adopted assessments shall be administered by the
10 Board for a period that is in coordination with the six-year subject
11 area textbook adoption cycle unless the vendor does not fulfill the
12 terms of the contract or fails to comply with or violates the terms
13 of the contract. The Board shall administer the assessments
14 beginning with the 2017-2018 school year.

15 C. The statewide student assessment system adopted by the Board
16 pursuant to this section shall include assessments that:

17 1. Are aligned with the Oklahoma subject matter standards as
18 adopted by the Board;

19 2. Provide a measure of comparability among other states;

20 3. Yield both norm-referenced scores and criterion-referenced
21 scores;

22 4. Have a track record of statistical reliability and accuracy;
23 and
24

1 5. For assessments administered in high school, provide a
2 measure of future academic performance.

3 D. For the 2016-2017 school year, the Board shall administer
4 assessments in:

5 1. English Language Arts or ~~Reading~~ reading and ~~Mathematics~~
6 mathematics in grades three through eight and at least once in high
7 school, during the grade span of nine through twelve;

8 2. Science not less than once during each grade span of three
9 through five, six through nine, and ten through twelve; and

10 3. United States History not less than once during the grade
11 span of nine through twelve.

12 E. 1. Beginning with the 2017-2018 school year, the statewide
13 student assessment system shall include assessments in:

14 a. English Language Arts and ~~Mathematics~~ mathematics in
15 grades three through eight and at least once in high
16 school, during the grade span of nine through twelve,

17 b. ~~Science~~ science not less than once during each grade
18 span of three through five, six through nine, and ten
19 through twelve, and

20 c. United States History, with an emphasis on civics, not
21 less than once during the grade span of nine through
22 twelve.

23 2. Beginning with the 2017-2018 school year, the statewide
24 student assessment system may include:

- 1 a. assessments in ~~Reading and Writing~~ reading, writing,
2 and mathematics in certain grades as determined by the
3 Board, and
- 4 b. contingent upon the availability of funds, an
5 additional nationally recognized college- and career-
6 readiness assessment or assessments as recommended by
7 the State Department of Education which will be
8 administered to students in high school at no cost to
9 the student.

10 F. 1. Beginning with students entering the ninth grade in the
11 2017-2018 school year, each student shall take the assessment or
12 assessments included in the statewide student assessment system
13 adopted by the Board pursuant to subsection A of this section in
14 order to graduate from a public high school with a standard diploma.
15 All students shall take the assessment or assessments prior to
16 graduation, unless otherwise exempt by law.

17 2. Beginning with students entering the ninth grade in the
18 2017-2018 school year, each student, in addition to taking the
19 assessment or assessments included in the statewide student
20 assessment system adopted by the Board pursuant to subsection A of
21 this section, shall meet any other high school graduation
22 requirements adopted by the Board pursuant to Section 5 of Enrolled
23 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
24

1 Legislature in order to graduate from a public high school with a
2 standard diploma.

3 3. For students who start the ninth grade prior to or during
4 the 2016-2017 school year, school districts shall adopt a plan that
5 establishes the assessment or assessments those students are
6 required to take in order to graduate from a public high school with
7 a standard diploma. The plan may also include any or all of the
8 other high school graduation requirements adopted by the Board
9 pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd
10 Session of the 55th Oklahoma Legislature that those students will be
11 required to meet in order to graduate from a public high school with
12 a standard diploma.

13 4. The Board shall promulgate rules to ensure that students who
14 transfer into an Oklahoma school district from out-of-state after
15 the junior year of high school shall not be denied the opportunity
16 to be awarded a standard diploma due to differing testing
17 requirements.

18 G. In order to provide an indication of the levels of
19 competency attained by the student in a permanent record for
20 potential future employers and institutions of higher education,
21 school districts shall report on the high school transcript of the
22 student the highest-achieved score on the assessment or assessments
23 included in the statewide student assessment system adopted by the
24

1 Board pursuant to subsection A of this section and any business- and
2 industry-recognized endorsements attained.

3 H. Students who do not perform at a proficiency level on
4 assessments shall be remediated as established in the assessment
5 requirements adopted by the Board pursuant to Section 5 of Enrolled
6 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
7 Legislature, subject to the availability of funding.

8 I. 1. All assessments required by this section shall measure
9 academic competencies in correlation with the subject matter
10 standards adopted by the Board pursuant to Sections 11-103.6 and 11-
11 103.6a of this title and referred to as the Oklahoma Academic
12 Standards. The State Board of Education shall evaluate the subject
13 matter standards to ensure the competencies reflect high standards,
14 are specific, well-defined, measurable, and challenging, and will
15 prepare elementary students for next-grade-level course work and
16 secondary students for postsecondary studies at institutions of
17 higher education or technology center schools without the need for
18 remediation. All subject matter standards shall reflect the goals
19 as set forth in Section 11-103.6 of this title and of improving the
20 state average ACT score.

21 2. The State Department of Education shall annually evaluate
22 the results of the assessments. The State Board of Education shall
23 ensure that preliminary results for all statewide assessments are
24 reported to districts no later than June 20 of each year and are

1 presented in a manner that yields detailed, diagnostic information
2 for the purpose of guiding instruction and student remediation. As
3 improvements are made to the assessments required by this section,
4 the Board shall seek to increase the depth of knowledge assessed for
5 each subject. The State Board of Education shall seek to ensure
6 that data yielded from the assessments required in this section are
7 utilized at the school district level to inform instruction,
8 professional development, school improvement, and remediation for
9 students.

10 3. The Commission for Educational Quality and Accountability
11 shall determine the cut scores for the performance levels on all
12 statewide assessments. The Commission shall conduct an ongoing
13 review to compare the statewide assessment content and performance
14 descriptors with those of other states. Upon receipt of the review,
15 the Commission may adjust the cut scores as necessary.

16 4. The State Board of Education, for the purposes of conducting
17 reliability and validity studies, monitoring contractor adherence to
18 professionally accepted testing standards, and providing
19 recommendations for testing program improvement, shall retain the
20 services of an established, independent agency or organization that
21 is nationally recognized for its technical expertise in educational
22 testing but is not engaged in the development of aptitude or
23 achievement tests for elementary or secondary level grades. These
24 national assessment experts shall annually conduct studies of the

1 reliability and validity of the statewide assessments administered
2 pursuant to this section. Validity studies shall include studies of
3 decision validity and concurrent validity.

4 J. 1. The State Board of Education shall promulgate rules
5 setting the assessment window dates for each statewide assessment so
6 that the assessments are administered according to recommended
7 testing protocols⁷ and so that the assessment results are reported
8 back to school districts in a timely manner. The vendor shall
9 provide a final electronic data file of all school site, school
10 district, and state results to the State Department of Education and
11 the Office of Educational Quality and Accountability prior to August
12 20 of each year. The Department shall forward the final data files
13 for each school district and each school site in that district to
14 the school district. The Board shall ensure the contract with the
15 vendor includes a provision that the vendor report assessment
16 results directly to the Office of Educational Quality and
17 Accountability at the same time it is reported to the Board.

18 2. State, district, and site level results of all assessments
19 required in this section shall be disaggregated by gender, race,
20 ethnicity, disability status, migrant status, English proficiency,
21 and status as economically disadvantaged, except that such
22 disaggregation shall not be required in a case in which the number
23 of students in a category is insufficient to yield statistically
24 reliable information or the results would reveal personally

1 identifiable information about an individual student. Each school
2 site shall notify the student's parents or legal guardians of the
3 school's performance levels in the Oklahoma School Testing Program
4 as reported in the Oklahoma Educational Indicators Program at the
5 end of each school year.

6 K. The State Board of Education shall be responsible for the
7 field-testing and validation of the statewide assessment system
8 required in subsection A of this section.

9 L. The State Board of Education shall develop, administer, and
10 incorporate as a part of the Oklahoma School Testing Program, other
11 assessment programs or procedures, including appropriate
12 accommodations for the assessment of students with disabilities as
13 required by the Individuals with Disabilities Education Act (IDEA),
14 20 U.S.C., Section 1400 et seq.

15 M. For purposes of developing and administering alternate
16 assessments for students with the most significant cognitive
17 disabilities, the State Board of Education shall not be subject to
18 subsections D and E of Section 11-103.6a of this title.

19 N. By December 15, 2026, and annually thereafter, the State
20 Board of Education shall electronically submit a report to the
21 Legislature containing data collected for the most recently
22 completed school year on the number and demographics of students who
23 were eligible for advanced mathematics courses, the number and
24 demographics of students who were placed in advanced mathematics

1 courses, the number and demographics of students placed in
2 mathematics intervention courses, and the number and demographics of
3 students not placed in advanced mathematic courses or mathematic
4 intervention courses. The report shall include information on the
5 type and format of advanced mathematic courses and the type and
6 format of mathematic intervention courses.

7 O. The State Board of Education shall provide guidance on how
8 to best develop programming and courses to ensure all impacted
9 students receive rigorous, academically appropriate instruction in
10 mathematics.

11 SECTION 10. This act shall become effective July 1, 2025.

12 SECTION 11. It being immediately necessary for the preservation
13 of the public peace, health, or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

16 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
17 February 26, 2025 - DO PASS AS AMENDED BY CS
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